

Email 0 — Emily Petering, Together Queensland

Sent Monday 3 August 2026 — record copy of the email body as sent

TO: Emily Petering, Industrial Officer, Together Queensland
CC: Heath Moran
SUBJECT: Urgent – one question re appeal timeframe – Cory Shepherd, A03 Switchboard, Logan

Hi Emily,

Thanks again for the call on 28 July.

I have one question I need to ask ahead of anything else, because it may be time-limited.

On 13 July 2026 my manager wrote to me: "I will be submitting your leave as income protection no pay from the 13th July 26, as per our guidelines for all QSuper claims for Income protection." I have attached that email.

I asked QSuper to cease my income protection benefits in March 2026 because I was working. On my understanding there is no claim in payment. I am therefore receiving neither wages nor benefit.

MY QUESTION: is there an appeal period running on that decision – for example as a fair treatment decision under the Public Sector Act – and if so, has it passed or is it still open?

I am not asking you to advise on the merits today. I only need to know whether a clock is running, so that I do not lose an option by waiting.

If it is still open, I would be grateful for your view on whether Together would run it. If it has passed, I will proceed on the other tracks below and will not raise it again.

FOR YOUR INFORMATION – WHAT I HAVE DONE TODAY

■ HELD 3 AUG – NOT SENT. Cory withdrew this email from the Monday send; the union receives the live emails by Cc. Kept ready in case he raises the appeal-window question separately.

Since the exclusion has now run to five weeks and I did not want to lose time, I have today sent the Health Service the attached documents, combined into a single PDF in the order sent. They are:

1. My response to the Request for Medical Information of 31 July 2026, with its proposal for return to work and a short notice on the appointment arrangements and costs.
2. A request under clause 10.3.2 of the certified agreement for a change in the way I work – the roster pattern the ECC describes, plus a pre-shift attendance confirmation protocol. I have made it as a standalone document so that clause 10.3.6 applies: written notice of the decision within 21 days, with reasons outlining the reasonable grounds. Section 29 of the IR Act deems a refusal if no notice issues.
3. A notice of dispute under clause 1.11.2(a), to my immediate supervisor as the clause requires, copied to you. It seeks the status quo under clause 1.11.4 – including payment of my permanent line while the procedure runs – the leave and pay treatment, the roster and payroll record, feedback under clause 7.1.11, and a psychosocial risk assessment under clause 7.2.
4. A letter to the Chief Executive under section 89 of the Public Sector Act about conflict of interest and the handling of my personal information. It goes to her alone, makes no allegation, and asks five questions.

THREE THINGS IN THE FILE THAT I THINK MATTER MOST

- (a) The letter of 7 July 2026 states: "it is noted that your treating medical practitioner has advised that there are unresolved workplace matters involving line management. At this stage, the Health Service does not have sufficient information to understand the nature of

these matters or assess whether they present any psychosocial hazards or risks." That was four weeks ago. So far as I am aware no assessment has followed.

- (b) The letter of 15 July 2026 refers to my being managed through "Health Management processes". That phrase is the only description of the process I have been given. No instrument, no steps, no decision-maker has ever been identified to me, and I have asked.
- (c) The pay treatment from 13 July is recorded as following from a QSuper income protection claim. I stopped those benefits myself in March 2026.

WHAT I WOULD MOST VALUE FROM TOGETHER

- 1. The answer to the timeframe question above.
- 2. Whether Together will run the clause 1.11 dispute alongside me from Stage 2 – clause 1.11.2(b) puts the conference obligation on management, and I would rather you were in it.
- 3. Your view on paid special leave under the applicable directive as the fallback if the exclusion is maintained, which we discussed on the 28th.

I am conscious this is a lot at once. The only urgent item is the first one.

Kind regards,
Cory Shepherd
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